FB05-1054

Kristin Rooney

EVIDENCE RECEIVED:

ITEM	VOUCHER	DATE REC'D	DESCRIPTION
1	M742751	6/25/05	sexual assault kit from: Kristin Rooney
1A1-1A2	"		dried secretions from "L nipple"
1A3-1A4	"		dried secretions from "R nipple"
1B	"		fingernail scrapings
1C1-1C2	"		oral swabs and smears
1D	"		buccal specimen
1E	"		pubic hair combings
1F1-1F2	"		vaginal swabs and smears
1G1-1G2	"		anal swabs and smears
1	M742752	7/17/05	black scarf
2A	"		manila envelope
2B	"		manila envelope (not listed on voucher)
3	"		piece of paper
1	M742753	7/17/05	white shirt
2	"		plastic bag
3	"		jeans
4	"		plastic bag

DISPOSITION:

The following items will be retained in the laboratory:

buccal specimen from Kristin Rooney
DNA extracts for all samples and controls tested

The remainder of the evidence will be returned to the OCME Evidence Unit.

Analyst: Sara Castro

Sara L. Castro
Criminalist II

OFFICE OF CHIEF MEDICAL EXAMINER
Charles S. Hirsch, M.D., *Chief Medical Examiner*

DEPARTMENT OF FORENSIC BIOLOGY
Mechthild Prinz, Ph.D., *Director*
Howard J. Baum, Ph.D., *Deputy Director*
421 East 26th Street, New York, New York 10016
Tel: [redacted] Fax: [redacted] E-mail: [redacted]

January 14, 2009

LABORATORY REPORT

SUSPECT: Elmo Rivadeneira LAB NO: FB06-S497

COMPLAINT NOS: 2004-010-66117
2004-010-65179

ADDITIONAL REPORT

This is an additional report. For previous results, evidence received, and disposition, see report dated October 12, 2006.

SUMMARY OF RESULTS:

The DNA alleles from the suspect, Elmo Rivadeneira, are the same as the DNA alleles of Male Donor A to swabs 1A, 2A, and 2B from voucher N432637 from case:

FB Number	Victim's Name	Report Dates
FB05-1054	Kristin Rooney	January 18, 2006 and January 13, 2009

The suspect, Elmo Rivadeneira, is excluded as a contributor to sample 1B taken from the black scarf from voucher M742752.

The DNA profile of Elmo Rivadeneira, does not match any other PCR (STR) DNA profiles in the local OCME DNA databank to date, excluding FB04-2261.

EXAMINATIONS:

Blood and other physiological fluids and tissues contain polymorphic ("many forms") genetic markers which can differ from person to person. These genetic markers are inherited, that is, pass from generation to generation and can be used to compare biological samples from different sources. Genetic markers occur because of changes (mutations) that occur in a person's hereditary material, DNA (Deoxyribonucleic Acid).

DNA can be recovered from biological samples such as blood, bone, hair, saliva, semen, and skin cells. Using a technique known as quantitative real time polymerase chain reaction (qRT-PCR), the amount of DNA extracted from samples can be measured. If sufficient DNA is detected, further DNA testing can be performed.

Alternative forms of DNA are called alleles; they are found at the same location of the DNA (locus, plural loci) on homologous (matching) chromosomes. An individual can have a maximum of two different alleles at a particular locus, one on each homologous chromosome. A group of two alleles from the same locus constitutes a type.

Several different loci may be analyzed simultaneously using PCR. This technique allows small amounts of DNA to be amplified; after amplification, the alleles present in the sample are identified.

The loci tested may include the short tandem repeat (STR) loci [vWA, TH01, D3S1358, FGA, D8S1179, D21S11, D18S51, D5S818, D13S317, D7S820, TPOX, CSF1PO, D16S539, D2S1338, D19S433]. The STR loci exhibit length polymorphisms which are variations in the number of core repeats, which are 4 base pairs in length. STR alleles are named according to the number of core repeats present at the locus. Each locus has between 8 and 31 identifiable alleles.

The loci tested may also include the Amelogenin locus, which is located on the chromosomes X and Y, and can be used to determine the sex origin of an unknown sample.

When amounts less than 100 pg of DNA are present in a sample, or when conventional PCR testing does not yield a complete result, Low Copy Number DNA testing may be used. With this procedure, all alleles detected in two of the three replicate amplifications comprise the composite profile. Single source profiles are assigned according to High Sensitivity DNA interpretation guidelines.

Samples with more than two DNA alleles detected at at least three DNA loci are defined as mixtures of DNA. Major component profiles may be deduced according to High Sensitivity DNA interpretation guidelines. No conclusions can be drawn regarding the DNA profiles of minor contributors to mixtures of low amounts of DNA. Samples may also be classified as possible mixtures if inconsistencies between replicate amplifications at several loci are noted. This is particularly the case for samples amplified with less than 20pg of DNA.

FB06-S497

Elmo Rivadeneira

Locus	Chromosome	Alleles
D3S1358	3	<12, 12, 13, 14, 15, 15.2, 16, 17, 18, 19, >19
vWA	12	<11, 11, 12, 13, 14, 15, 15.2, 16, 17, 18, 19, 20, 21, 22, 23, 24, >24
FGA	4	<17, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 26.2, 27, 28, 29, 30, 30.2, 31.2 32.2, 33.2, 42.2, 43.2, 44.2, 45.2, 46.2, 47.2, 48.2, 50.2, 51.2, >51.2
D8S1179	8	<8, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, >19
D21S11	21	<24, 24, 24.2, 25, 26, 27, 28, 28.2, 29, 29.2, 30, 30.2, 31, 31.2, 32, 32.2, 33, 33.2, 33, 33.2, 34, 34.2, 35, 35.2, 36, 37, 38, >38
D18S51	18	<7, 7, 9, 10, 10.2, 11, 12, 13, 13.2, 14, 14.2, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, >27
D5S818	5	<7, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, >16
D13S317	13	<8, 8, 9, 10, 11, 12, 13, 14, 15, >15
D7S820	7	<6, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, >15
D16S539	16	<5, 5, 8, 9, 10, 11, 12, 13, 14, 15, >15
TH01	11	<4, 4, 5, 6, 7, 8, 8.3, 9, 9.3, 10, 11, 13.3, >13.3
TPOX	2	<6, 6, 7, 8, 9, 10, 11, 12, 13, >13
CSF1PO	5	<6, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, >15
D2S1338	2	<15, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, >28
D19S433	19	<9, 9, 10, 11, 12, 12.2, 13, 13.2, 14, 14.2, 15, 15.2, 16, 16.2, 17, 17.2, >17.2

DISPOSITION:

The following items will be retained in the laboratory:

DNA extracts for all samples and controls tested

Analyst: _____

Michelle M. Egermann
Criminalist III

Administrative Review Date: 1/12/2011

Administrative Reviewer: LNS

OFFICE OF CHIEF MEDICAL EXAMINER
520 First Avenue, New York, New York 10016

DEPARTMENT OF FORENSIC BIOLOGY
421 East 26th Street, New York, New York 10016
Mechthild Prinz, PhD, Director
Telephone: [redacted] Fax: [redacted]
Email: [redacted]
Official Website: http://www.nyc.gov/ocme

DATE: July 26, 2013

LABORATORY REPORT

SUSPECT: Elmo Rivadeneira

LAB NO: FB06-S497

COMPLAINT NOS: 2004-010-66117
2004-010-65179
2005-010-03466

START DATE: 07/26/2013

ADDITIONAL REPORT

This is an additional report. For previous results, evidence received, and disposition, see reports dated October 12, 2006 and January 14, 2009.

RESULTS AND CONCLUSIONS:

PCR DNA typing using the AmpFℓSTR® Identifiler® PCR Amplification Kit was previously done on the oral swab from Elmo Rivadeneira. A DNA profile was determined.

This profile was compared to the results in the following case:

FB number	Complaint Number	Victim Name	Report date
FB05-1054	2005-010-03466	Kristin Rooney	July 25, 2013

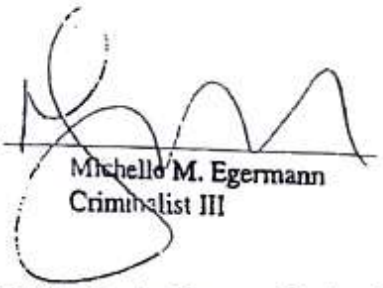
Elmo Rivadeneira is excluded as a contributor to the sample listed below.

sample 1A taken from the black scarf

The DNA profile above is suitable for entry into the OCME local DNA databank.

Note: **This report has an associated Forensic Biology case file.**

Elmo Rivadeneira

Analyst: 

Michelle M. Egermann
Criminalist III

Administrative Review Date: 8.7.13

Administrative Reviewer: 

REQUEST FOR LABORATORY EXAMINATION
PD 521-161 (Rev. 9-89)-95

POLICE DEPARTMENT
CITY OF NEW YORK

(See instructions on last copy)

INVESTIGATING/ARRESTING OFFICER (Print) Rank	Name (Surname, First, M.I.)	TAX REG. No.	COMMAND	COMP./CASE No.	PCT.	PROP. CLK. INV. No.
Det	Savino, j	[redacted]	MSVS	590/3466	10	M742752

OFFENSES: Rape

COMPLAINANT (Name): Kristin Rooney

DATE/TIME OF OCCURRENCE	ADDRESS OF OCCURRENCE	TYPE OF PREMISES
6/24/05 0400-0600	W 24. st between 10th & 9th Ave.	street

DEFENDANT/SUSPECT

Name	Arrest No.	Pct.	NYSID No.	Sex	Color	Age	Height	Weight
unknown				M	unk			

DETAILS OF OFFENSE (Include Relationship of Evidence to Case. When necessary, include physical description of complainant.)

victim forced at knife point into a veehicle and driven to ~~xxx~~ several locations and inside the vehicle the male sexually abused the victim orally sodomized and raped her two times. the 1st time was with a condom and the 2nd time she was raped she is not sure if he used a condom or not. victim had eyes covered with a black scarff

EVIDENCE SUBMITTED

Item No.	Description	Ident. Marks	Where Obtained
01	black scarff	in sealed bag labled JS3713	victim
02	small eenvelope	in small sealed bag JS3713	victim
03	white sheet of 8 x 14 paper	in small sealed bag js3713	MSVS

TYPE EXAMINATION REQUESTED (Purpose of Request) HAIR & FIBERS & then Possible DNA from Scarff

Item 1 was put on victims eyes to stop her from seeing, Item # 2 was used to secure scarff for transport from N.J to MSVS & # 3 was used to place items on to see if it had any ID on it.

HAS OTHER EVIDENCE IN THIS CASE BEEN PREVIOUSLY SUBMITTED? ☐ Yes ☐ No

Check section and give case no., if known.

☐ Lab Case No. _____ ☐ Crime Scene No. _____ ☐ Ballistics Unit No. _____ ☐ Bomb Squad No. _____

IS THERE A PREVIOUS CASE WHERE EVIDENCE CAN BE COMPARED WITH THIS CASE?

☐ Yes ☐ No If Yes, Complaint No. _____ Pct. _____ Lab. Number(s) _____

REMARKS: (Any Information That May Aid in Analysis)

FB05-1054

MEMBER SUBMITTING EVIDENCE

Rank	Name	Tax Reg. No.	Cmd.
Det	Savino	[redacted]	MSVS

LABORATORY USE ONLY

☑ CRIM ☐ ARSON ☑ SER
☐ DOC ☐ BAL ☐ IDTU

Laboratory No. 05T-1578 Date 6/25/05 Received by: Lo. Maldonado
E405M1920 (1) 7/15/05

WHITE AND PINK COPIES—POLICE LABORATORY BLUE COPY—PRECINCT FILE COPY

E405M1919